

24VECV03730 24VECV03730

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Case Number: 24VECV03730 Hearing Date: June 30, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JESSIE PUENTES ROMO,
OSCAR HERNANDEZ, DANIEL FELICIANO

Plaintiffs,

vs.

LYNN LAUDAHL, individually and DOES 1
through 20 Inclusive 2.,

Defendant.

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CASE NO.: 24VECV03730

ORDER
DENYING DEFENDANT'S MOTION TO DISMISS AND FOR TERMINATING SANCTIONS AGAINST
PLAINTIFFS

I.
BACKGROUND

This case arises out of a motor vehicle accident involving Plaintiffs Jessie Puentes Romo, Oscar Hernandez, and Daniel Feliciano (collectively, "Plaintiffs") and Defendant Lynn Eve Laudahl ("Defendant"). Plaintiffs allege that on July 22, 2022, Defendant negligently operated a motor vehicle and struck the vehicle occupied by plaintiffs in Sylmar, California, causing injuries and other damages.

Defendants now seeks terminating sanctions against Plaintiffs and dismissal of the action with prejudice.

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II.

PROCEDURAL

HISTORY

On July 22, 2024, Plaintiffs filed their Complaint, alleging causes of action for (1) Negligence and (2) Motor Vehicle Negligence.

On June 18, 2025, Defendant filed their Answer.

On December 18, 2025, the Court denied Defendant's Motions to Compel Discovery.

On January 21, 2026, the Court denied Defendant's Motion to Compel Discovery.

On February 17, 2026, Defendant filed nine motions to compel Plaintiffs' responses to Form Interrogatories, Special Interrogatories, and Requests for Production.

On March 26, 2026, Plaintiffs filed a Notice of Non-Opposition, representing that responses to the written discovery had been served on behalf of all three Plaintiffs.

On March 27, 2026, this Court granted Defendant's motions to compel and ordered each Plaintiff to serve code-compliant responses without objections on or before April 10, 2026 ("Order"). The Court also ordered Plaintiffs' counsel to pay Defendant's counsel \$647.50 in monetary sanctions by April 10, 2026.

On May 26, 2026, Defendants filed the instant Motion to Dismiss and for Terminating Sanctions against Plaintiffs ("Motion").

Plaintiffs did not file an opposition to the Motion.

III.

LEGAL STANDARD

A.

Terminating, Issue, Evidentiary, and/or
Sanctions

On motion, if

a party “fails to obey an order compelling attendance, testimony, and production, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction” as provided in Section 2030.010, et seq. (Code Civ. Proc. § 2025.450(h).)[1] The “court, after notice to any affected party, person, or attorney, and after an opportunity for hearing, may impose” monetary, issue, evidence, or terminating sanctions “against anyone engaging in conduct that is a misuse of the discovery process[.]” (Code Civ. Proc. § 2023.030(a)-(d).) Failing to respond or submit to an authorized method of discovery and disobeying a court order to provide discovery are misuses of the discovery process. (See Code Civ. Proc. § 2023.010(d), (g).)

IV.

ANALYSIS

Defendant requests the

Court dismiss Plaintiffs’ action with prejudice based on Plaintiffs’ failure to comply with the Court’s March 27, 2026, Order. (See Motion, pp. 3-5.)

Defendant contends Plaintiffs’ Jessie Puentes Romo and Oscar Hernandez served unverified and substantively deficient discovery responses, Plaintiff Daniel Feliciano failed to serve any responses, and Plaintiffs’ counsel failed to pay the \$647.50 monetary sanction ordered by the Court.

Plaintiffs did not
oppose the motion.

Plaintiffs’ failure to

provide discovery and comply with the Court’s discovery order constitutes a misuse of the discovery process. (See Code Civ. Proc. § 2023.010(d), (g). When a party fails to comply with an order compelling attendance, testimony, and production, the Court may impose monetary, issue, evidentiary or terminating sanctions as provided in Section 2030.010, et seq. (Code Civ. Proc. § 2025.450(h).)

The Court nevertheless declines to impose terminating sanctions. Although the Court expects its orders to be followed, dismissal with prejudice would be too harsh under the circumstances presented at this point. The March 27, 2026, Order was the first order compelling Plaintiffs to provide written discovery. Defendant's earlier motions to compel were denied because Defendant sought discovery relief against all three Plaintiffs within the same motions but paid only one filing fee for each motion, rather than filing and paying separately as to each Plaintiff. Those earlier rulings did not result in discovery orders.

Moreover, the conduct of the three Plaintiffs' is not identical. Romo and Hernandez served responses, although remaining unverified and Defendant contends they were deficient. Feliciano, by contrast, seems to have served no responses whatsoever. Notwithstanding the fact that unverified responses are tantamount to no responses at all, dismissing the action against all three Plaintiffs would therefore impose the same terminating sanction despite their differing levels of noncompliance.

Defendant also points to Plaintiffs' failure to appear for their May 12, 2026, depositions. However, when Defendant filed this motion, the Court had not yet ordered Plaintiffs to attend their depositions. Defendant later filed motions to compel their attendance on June 8, 2026. Therefore, the missed depositions were separate issues and were not violations of the March 27, 2026, Order.

Although Plaintiffs' failure to comply fully with the Order is serious, the Court has not yet imposed issue or evidentiary sanctions, and the record does not show Plaintiffs were warned continued noncompliance could lead to dismissal. For these reasons, the Court does not find the record sufficient to justify dismissal of the action with prejudice; an incremental approach is more appropriate.

Accordingly, the Court
DENIES Defendant's Motion.

V.

CONCLUSION

Based on the foregoing, the Court DENIES Defendant's Motion to

Dismiss and for Terminating Sanctions against Plaintiffs.

IT IS SO
ORDERED.

DATED: June 30, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references are to California
codes unless stated otherwise.